

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND**

ROBERT LUNA,

Plaintiff(s),

-against-

THE CITY OF NEW YORK and
THE NEW YORK CITY POLICE DEPARTMENT,

Defendant(s).

VERIFIED COMPLAINT**Index Number: 152574/2018**

Plaintiff, ROBERT LUNA, complaining of the defendants by his attorney,

EFROM GROSS, respectfully shows to this Court and alleges:

1. At all times herein mentioned, plaintiff was a resident of the County of New York, City and State of New York.

2. At all times herein mentioned defendant, THE CITY OF NEW YORK, was a municipal corporation.

3. The plaintiff served a Notice of Claim in compliance with General Municipal Law section 50-e, on August 7, 2017, at least 30 days have passed since this service and adjustment of payment thereof has been neglected or refused, and the action has been commenced within the time frame allowed by General Municipal Law section 50-i.

4. On August 30, 2018, the defendant, THE CITY OF NEW YORK held its 50-H Hearing.

5. On or about July 3, 2017, the plaintiff, ROBERT LUNA, was falsely handcuffed and falsely arrested by the defendant, THE NEW YORK CITY POLICE DEPARTMENT.

6. Plaintiff, ROBERT LUNA, was threatened and falsely detained by the police the defendant officer(s) and employee(s) of THE NEW YORK CITY POLICE DEPARTMENT.

7. On/or about July 6, 2017, while at Rikers Island, the plaintiff, ROBERT LUNA, was beaten by officers and was not provided with mental health care services, whereby his civil rights were violated.

8. The negligence of defendant(s), THE CITY OF NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT by its agents, employees and/or servants was in negligently hiring; in falsely threatening, detaining and arresting, beating the plaintiff, not providing him with mental health care, failing to exonerate the plaintiff, failing to disclose his legal rights and defense, as well as other acts of negligence and recklessness.

9. As a result of the false detentions, invasion of privacy, violations of civil rights, due to the negligence and intentional acts of the defendant's police officer(s) the plaintiff sustained emotional distress, emotional trauma of being wrongfully arrested, mental suffering, emotional and psychological injury.

10. That as result of the foregoing, plaintiff, RICARDO LOPEZ, has been damaged in an amount sought that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff, RICARDO LOPEZ, demands judgment in the amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction together with the costs and disbursements of this action, and with interest from the date of this occurrence.

Dated: West Hempstead, New York
November 21, 2018

Yours, etc.,
EFROM J. GROSS, ESQ.
713 Wildwood Road
West Hempstead, New York 11552
Tel.: (516) 508-1233
(718) 787-0304

ATTORNEY'S AFFIRMATION

EFROM GROSS being duly sworn, deposes and says:

That deponent is an attorney and affirms the following to be true under the penalties provided by Law. I am the attorney for plaintiff(s); and have read the foregoing SUMMONS & COMPLAINT and know the contents thereof; that the same is true to my knowledge, except as to those matters therein stated to be alleged on information and belief, and as to those matters I believe to be true; that the reason that this verification is made by affirmant instead of plaintiff(s), as plaintiff(s) is not within the County of Nassau where your affirmant's office is located.

Affirmant further says that the grounds of his belief as to all matters in the said SUMMONS & COMPLAINT are based upon deponent's general investigation of the facts herein.

Dated: West Hempstead, New York
November 21, 2018



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EFROM J. GROSS, ESQ.
Attorney for Plaintiff(s)
Office and Post Office Address, Telephone
713 Wildwood Road
West Hempstead, New York 11552
Tel.: (516) 483-4580

TO:

Attorney(s) for

Service of a copy of the within

is hereby admitted.

Dated,

Attorney(s) for

PLEASE TAKE NOTICE

PLEASE TAKE NOTICE

☐ that the within is a (certified) true copy of an entered in the office of the Clerk
Notice of of the within named Court on

☐ that an Order of which the within is a true copy will be presented for settlement to the
Notice of Hon. One of the judges of the within named Court, at
Settlement Brooklyn, New York on 20, at M.

Dated: West Hempstead, New York

Yours, etc.
EFROM J. GROSS, ESQ.
Attorney for Plaintiff(s)
Office and Post Office Address
713 Wildwood Road
West Hempstead, New York 11552